

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Jose S. Franco
(Covering for Honorable Jeffrey B. El-Hajj)**

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: September 17, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, you must call (408) 808-6856 before 4:00 P.M.

You must also contact the other side before 4:00 P.M. to inform them that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

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9:00 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	21CV386912	Yeo Bai Lee v. Christy Ryoo et al.	
Line 2	22CV408364	Jane Doe v. Giorgio Garcia et al.	
Line 3	22CV408364	Jane Doe v. Giorgio Garcia et al.	
Line 4	24CV444963	Cairo Sodersten v. General Motors, LLC	
Line 5	25CV460436	Fang Xia v. Park Townsend Homeowners Association	
Line 6	25CV462725	Carmen Moyoli v. Jorge Villar et al.	
Line 7	25CV464509	Asirepro.com v. Esther Cunningham	
Line 8	25CV466869	Capital One N.A. v. Destiny Ramos	
Line 9	25CV470054	Cavalry SPV I, LLC, as Assignee of Citibank, N.A. v. Remy-Ann Perez	
Line 10	25CV474170	Saniyah Winslett v. Patricia St. Claire Rodriguez	

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Calendar Line 1

Case Name: Yeo Bai Lee v. Christy Ryoo et al

Case No.: 21CV386912

This action, dating back to 2021, comes before the court on Defendant's opposed motion for an order dissolving the preliminary injunction. The motion was filed and served on July 29, 2026. The Plaintiff's opposition was filed on September 3, 2026. The trial date in this matter is currently set for November 9, 2026.

Under California law, the party moving to dissolve or modify a preliminary injunction bears the burden of proof to establish by a preponderance of the evidence that the dissolution or modification is warranted. (Code of Civ. Proc. § 533; *Loeffler v. Medina* (2009) 174 Cal. App.4th 1495.) Specifically, the moving party must demonstrate that one of the statutory circumstances set forth in section 533 is present and justifies the termination of the injunction. The moving party must establish by a preponderance of evidence that at least one of the three independent statutory grounds in section 533: a material change in facts upon which the preliminary injunction was originally granted, the law upon which the preliminary injunction was granted has changed, or that "the ends of justice" would be served by a modification or dissolution of the injunction.

The court has reviewed and considered all the supporting and opposing papers submitted in relation to this request.

The general purpose of a preliminary injunction is to preserve the status quo between the parties pending a final determination of the merits of the action. As presented here, an insufficient showing has been made that a change in the law has occurred to warrant any modification to the preliminary injunction or that the ends of justice would necessitate it. Similarly, a material change in facts sufficient to dissolve a preliminary injunction is demonstrated when the facts that justified the initial restraint have changed or a deficiency or concern giving rise to the injunction has been cured, and that showing has also not been made here.

Because a preliminary injunction is a provisional remedy continuing in nature and directed at future events, it does not establish a final determination of the parties' rights but rather protects rights from unlawful interference until a trial on the merits. The trial in this case is set for less than 60 days from today and preserving the status quo in the final weeks leading up to trial serves the orderly administration of justice and ensures the final judgment is not rendered ineffectual.

Defendant's request for an order dissolving the preliminary injunction is DENIED.

Plaintiff is ordered to prepare and submit a proposed order.

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Calendar Line 2-3

Case Name: Jane Doe v. Giorgio Garcia et al.

Case No.: 22CV408364

This is an action for negligence brought by plaintiff Jane Doe (Plaintiff) against defendants County of Santa Clara (the County) and Pathway Society, Inc. (Pathway). Plaintiff originally sued Giorgio Raul Garcia (Garcia) as an additional defendant, but she dismissed Garcia in January 2025.

According to the second amended complaint (SAC), in June 2005, the County recommended that the 14-year-old Plaintiff be assigned to participate in the Teens in Transition Evolve (TITE) program. (SAC, ¶ 14.) The TITE program assigned Garcia as Plaintiff's case manager. (*Ibid.*) Garcia immediately began giving Plaintiff special attention, including giving rides in his personal vehicle and buying her gifts. (*Id.* at ¶ 15.) Garcia gave Plaintiff alcohol, and while the incident was reported to both the County and Pathway, reported the incident to law enforcement or did anything to prevent further harm by Garcia. (*Ibid.*) In September or October 2005, when Plaintiff was 15 years old, Plaintiff informed Garcia that she was leaving her home. (*Ibid.*) Garcia then picked her up and took her to his apartment, where he sexually assaulted Plaintiff. (*Ibid.*) Garcia subsequently continued communicating with Plaintiff, in an attempt to continue taking advantage of her. (*Ibid.*)

In November 2024, Plaintiff filed the SAC, alleging three causes of action against the County: (1) negligent hiring, supervision, and retention of an unfit employee; (2) breach of mandatory duty: failure to report suspected child abuse; and (3) negligence. In May 2025, the court (Judge Chung) sustained the County's demurrer to Plaintiff's breach of mandatory duty cause of action with 20 days' leave to amend. Plaintiff did not file an amended complaint. Plaintiff's operative SAC now alleges only two causes of action under theories of vicarious liability (Gov. Code, § 815.2) and independent contractor liability (Gov. Code, § 815.4).

At issue is the County's motion to seal and motion for summary judgment, or in the alternative, summary adjudication. While the County's motion to seal is unopposed, Plaintiff opposes the motion for summary judgment.

On August 28, 2026, Plaintiff filed a Notice and Application to File Opposition to Motion for Summary Judgment, or in the Alternative, Motion for Summary Adjudication Under Seal. The application will not be considered as it does not comply with California Rules of Court, rule 2.551(b) and (d).

MOTION TO SEAL

The County asks the court to seal six documents: the unredacted copies of Exhibits D-H to the Declaration of Alicia M. Roll in support of the County's motion for summary judgment. These documents consist of probation officer reports, a memorandum to juvenile court, an early disposition report, case notes/history for Plaintiff, and a San Jose Police Department report. These documents are all contained in Plaintiff's juvenile case file.

A court has the authority to order that a record be filed under seal if it expressly finds facts that establish: 1) there exists an overriding interest that overcomes the right of public access to the record; 2) the overriding interest supports sealing the record; 3) a substantial

probability exists that the overriding interest will be prejudiced if the record is not sealed; 4) the proposed sealing is narrowly tailored; and 5) no less-restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550.)

The California Rules of Court do not define what constitutes an “overriding interest.” Overriding interest has been found in cases involving protecting minor victims of sex crimes from further trauma and embarrassment and ensuring the anonymity of juvenile offenders in juvenile court. (*NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1222, fn. 46.)

A declaration supporting a motion to seal should be specific, not conclusory, as to the facts supporting the overriding interest. If the court finds that the supporting declarations are conclusory or otherwise unpersuasive, it may conclude that the moving party has failed to demonstrate an overriding interest that overcomes the right of public access. (*In re Providian Credit Card Cases* (2002) 96 Cal.App.4th 292, 301, 305.)

Here, the County provides the Declaration of Douglas Johns, which is sufficiently specific and properly refers to the Juvenile Court’s April 22, 2024 Protective Order requiring these documents be sealed. The factors established by California Rules of Court, rule 2.550(d) are satisfied as to these materials.

The County’s unopposed motion to seal is granted.

MOTION FOR SUMMARY JUDGMENT

The County moves for summary judgment, or in the alternative, summary adjudication on the SAC’s first cause of action for negligent hiring, supervision, and retention of an unfit employee and fourth cause of action for negligence.

LEGAL STANDARDS

Summary Judgment

The pleadings limit the issues presented for summary judgment or summary adjudication and such a motion may not be granted or denied based on issues not raised by the pleadings. (See *Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258; *Nieto v. Blue Shield of Calif. Life & Health Ins.* (2010) 181 Cal.App.4th 60, 73.) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) A motion for summary judgment or adjudication shall be granted only if it completely disposes of an entire cause of action, an affirmative defense, a claim for damages, or an “issue of duty.” (See Code Civ. Proc., § 437c, subd. (f)(1); *McClasky v. California State Auto. Ass’n* (2010) 189 Cal.App.4th 947, 975; *Palm Spring Villas II Homeowners Association, Inc. v. Parth* (2016) 248 Cal.App.4th 268, 288.)

“A defendant seeking summary judgment must show that at least one element of the plaintiff’s cause of action cannot be established, or that there is a complete defense to the cause of action.” “The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72; internal citations omitted.) “There is a triable issue of material fact if, and

only if, the evidence would allow a reasonable finder of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 850.) While the same standards of admissibility govern both sides’ supporting evidence, the opposition evidence is liberally construed while the moving party’s evidence is strictly construed. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 768.) The evidence must be liberally construed in support of the opposing party, resolving any doubts in favor of that party. (*Yanowitz v. L’Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1037.)

A reply “shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers.” (Code Civ. Proc., § 437c, subd. (b)(4); *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538; *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252.)

Public Entity Tort Liability

Government Code section 815 provides that public entity tort liability is exclusively statutory. Thus, a public entity cannot be held liable for an injury by the act or omission of the entity itself, its employee, or another person unless provided by statute. (Gov. Code, § 815.) Government Code section 815.2 provides such a statutory basis by holding a public entity liable for injuries proximately caused by an act or omission of its employee committed within the scope of employment. (Gov. Code, § 815.2, subd. (a).) The act or omission must give “rise to a cause of action against the employee or his personal representative.” (*Ibid.*) Furthermore, the employee whose conduct is sought to be attributed to the employer must be specifically identified. (*Munoz v. City of Union City* (2004) 120 Cal.App.4th 1077, 1113 (*Munoz*), overruled on another ground in *Hayes v. County of San Diego* (2013) 57 Cal.4th 622, 639; but see *C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872, fn. 5 (*C.A.*) [discussing *Munoz* and noting identification is not required at the demurrer stage].) Government Code section 815.4 provides that public entities may be liable for the acts or omissions of an independent contractor to the same extent as private person.

DISCUSSION

In moving for summary judgment on Plaintiff’s first cause of action for negligent hiring, supervision, and retention and fourth cause of action for negligent supervision, the County asserts that Plaintiff cannot demonstrate a triable issue material fact as to each cause of action. The County also contends that the independent contractor liability theory underpinning both causes of action does not apply.

First Cause of Action: Negligent Hiring, Supervision, and Retention

The County moves for summary adjudication on the first cause of action on the grounds that (1) Plaintiff cannot identify any County employee whose own negligent hiring, retention, or supervision conduct could support derivative public entity liability under Government Code section 815.2 because Garcia was hired, supervised, and terminable by Pathway, not the County; and (2) no County employee had prior actual knowledge of Garcia’s propensity to sexually assault minors before the alleged assault. The County also argues for the first time in its reply brief that Plaintiff fails to demonstrate that the assault occurred within the scope of Garcia’s employment with Pathway or the County. The argument is rejected. (See *Browne v. County of Tehama* (2013) 213 Cal.App.4th 704, 720, fn. 10 [“Points raised for the first time in

a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument.”].)

The elements of a cause of action for negligent hiring, retention, or supervision are: (1) the employer’s hiring, retaining, or supervising an employee; (2) the employee was unfit; (3) the employer knew or had reason to believe undue risk of harm would exist because of the employment; and (4) harm occurs. (*Alexander v. Community Hospital of Long Beach* (2020) 46 Cal.App.5th 238, 264.)

Garcia’s Employment Status and Identification of a County Employee

The County asserts that because Pathway hired, supervised, and retained Garcia, Plaintiff cannot identify any County employee that would be liable for Garcia’s alleged assault. (Motion, p. 11:24-27.)

The extent of an employer’s right to control the activity of its employee is highly relevant in determining whether the employer is vicariously liable for the employee’s acts. (*Linton v. DeSoto Cab Co., Inc.* (2017) 15 Cal.App.5th 1208, 1216 (*Linton*), citing *S. G. Borello & Sons, Inc. v. Department of Industrial Relations* (1989) 48 Cal.3d 341, 350 (*Borello*); see *Becerra v. McClatchy Co.* (2021) 69 Cal.App.5th 913, 930.) “The label placed by the parties on their relationship is not dispositive, and subterfuges are not countenanced.” (*Borello, supra*, 48 Cal.3d at p. 349.) The question of whether an employment relationship exists is generally a question of fact if it depends on resolution of disputed evidence or conflicting inferences. (*Linton, supra*, 15 Cal.App.5th at p. 1225.)

The County primarily relies on TITE program director Stephen Betts’ deposition testimony as evidence that the County did not employ Garcia. Betts testified that Pathways paid Michael Pritchard to be Garcia’s direct supervisor and Garcia would meet with youths in the TITE program and report back to Pritchard. (Roll Decl., Ex. A [Betts Dep.], pp. 35:18-22, 36:12-15, 44:23-25, 106:23-107:1.) Betts further testified, “[Garcia] didn’t have a role within the county. He was working for Pathway Society.” (*Id.* at p. 95:18-19.) Betts disclaimed any involvement in Garcia’s hiring process and testified that Pritchard and Pathway hired Garcia as part of Pathway’s contract with TITE. (*Id.* at p. 97:7-16.) Betts stated that neither the County nor TITE gave performance reviews to Garcia because he was not a County employee and any concerns regarding Garcia would be brought to Pritchard. (*Id.* at p. 108:15-25.) Betts had no power to discipline Garcia and could only tell Pritchard that he did not want Garcia having any more contact with clients. (*Id.* at pp. 116:16-18, 204:22-205:8.) Pritchard made the decision to terminate Garcia. (*Id.* at p. 118:12:15.) The County concludes that because Pritchard and Pathway hired Garcia, Plaintiff cannot identify any County employee that negligently hired Garcia.

In opposition, Plaintiff raises a triable issue of material fact with the deposition testimony of: (1) Plaintiff’s probation officer, Chris Bidinost, and (2) the County’s Children Family Community Service program manager, Danny Lloyd. While Plaintiff also relies on the deposition of Betts, Plaintiff did not include portions of the cited testimony. Accordingly, that omitted evidence cannot be considered on this motion.

Viewed in the light most favorable to Plaintiff, the evidence permits a reasonable trier of fact to infer either a County employment relationship or at least that the County (e.g., Betts)

had some direction or control over Garcia's daily performance. The County provided Garcia with an email address, in addition to an open workspace with phone access at the County clinic. (Ostovar Decl., Ex. B [Bidinost Dep.], pp. 155:21-156:1; Ex. C [Lloyd Dep.], p. 46:9-19.) Garcia attended TITE staff meetings at the County clinic as a Pathway case manager. (Lloyd Dep., pp. 49:24-50:3.) The evidence does not establish that the County directly paid Garcia. But, the evidence shows that the County acquired the long-term federal grant, Pathway was a subcontractor in the grant, and Pathway paid Pritchard with the grant money. (Betts Dep., pp. 36:12-18, 39:18-14; Lloyd Dep., 13:13-16.) While Pritchard testified that he was Garcia's supervisor and Pathway hired Garcia, he could not recall details on how he supervised Garcia, where Garcia primarily worked, or whether Pathway provided training to Garcia. (Ostovar Decl., Ex. D [Pritchard Dep.], pp. 32:25-33:12; 42:3-5; 74:23-24.) Furthermore, it is undisputed that Betts had authority to bar Garcia from the County's facilities. (UMF, No. 41; Betts Dep., p. 114:17-115:15.) Thus, Plaintiff also identifies one County employee that may be held liable for the negligent hiring, retention, and supervision claim.

And, contrary to the County's assertions, Plaintiff's theory that the County failed to "vet" Garcia is alleged in the SAC. The SAC alleges, "Defendants had the responsibility and duty to adequately and properly *investigate*, hire, train and supervise its staff, agents, employees, and/or affiliates, so as to protect children from harm..." (SAC, ¶ 24.) As noted above, Plaintiff relies on portions of Betts' testimony that is not before the court. While not cited by the parties, what is in the record nonetheless indicates a triable issue of material fact on the County's (specifically, Betts) failure to vet Garcia. Betts testified that he did not recall having any discussions regarding Garcia's criminal background, relying instead on Pathway's hiring process. (Betts Dep., p. 105:3-18.) Betts also stated he had "absolutely no idea" whether a reference check was done for Garcia and did not inquire because he trusted Pathway's hiring process. (*Id.* at p. 105:23-106:9.)

The Applicable Knowledge Standard

The County next argues that none of its employees had actual, prior knowledge of Garcia's propensity to sexually assault minors before the alleged assault. (Motion, p. 12:12-14.)

The governing knowledge standard depends on whether the County employed and controlled Garcia. In *A.L. v. Harbor Developmental Disabilities Foundation* (2024) 102 Cal.App.5th 477, 494 (*A.L.*), a nonprofit regional center was not liable for sexual assault by a vendor's employee because the center's duty to protect is triggered only when it has actual knowledge of that vendor employee's propensity to engage in such conduct. This is because the center did not employ the vendor's employees, and therefore, was "once removed" from the hiring decision. (*Id.* at pp. 491-492.) In contrast, where a defendant directly employs or supervises an employee, that defendant has the responsibility to guard against abuse from tortfeasors they know or have reason to know are prone to abuse. (See *C.A., supra*, 53 Cal.4th at p. 871.) This is because supervisory employees responsible for hiring and supervising employees know or should know of prior misconduct. (*Id.* at p. 870, citing *Virginia G v. ABC Unified School Dist.* (1993) 15 Cal.App.4th 1848, 1855.)

The standard articulated in *A.L.* cannot be used to dispose of the first cause of action. As noted above, whether the County employed Garcia remains a triable issue of material fact. If the trier of fact could find that Garcia served as a County-supervised worker in an

employment relationship or that Betts had the responsibility to vet, retain, or supervise Garcia, then the “knew, or should have known” standard would apply. Under that standard, Plaintiff demonstrates a triable issue of material fact. Garcia had previously been warned by Lloyd that transporting clients was not good practice. (Lloyd Dep., pp. 77:16-78:12.) Furthermore, while Plaintiff was a fugitive in July 2005, Garcia reported that he was in contact and met with Plaintiff. (Bidinost Dep. at pp. 115:22-116:13, 116:24-117:11.) And Plaintiff testified that the assault occurred sometime “between summer and before fall” but before October 2005. (Ostovar Decl., Ex. E [Plaintiff’s Dep.], p. 128:2-5, but see *id.* at p. 143:18-23 [confirming as true allegations of complaint that the assault occurred in September or October 2005].) Taking this evidence together, a triable issue of material fact remains on whether the County knew or should have known of Garcia’s propensity for sexual assault.

Given the foregoing, the County has not shown that at least one element of the Plaintiff’s first cause of action cannot be established. The County’s motion for summary adjudication of the first cause of action is denied.

Fourth Cause of Action: Negligence

The County moves for summary judgment on the first cause of action on the grounds that (1) the County owed no duty to supervise Plaintiff; (2) the County did not cause Garcia to assault Plaintiff; and (3) Plaintiff cannot identify a County employee that failed to adequately supervise her. (Motion, p. 15:4-8.)

“To establish a cause of action for negligence, the plaintiff must show that the ‘defendant had a duty to use due care, that he breached that duty, and that the breach was the proximate or legal cause of the resulting injury.’” (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 213 (*Brown*), quoting *Nally v. Grace Community Church* (1988) 47 Cal.3d 278, 292.)

Duty and Special Relationship

The County argues that it owed no duty to Plaintiff because authority on cases involving the negligent supervision of a minor typically occur in the school setting, which is inapplicable here. (Motion, p. 15:23-24.) The County next argues it owed no duty because the alleged assault did not occur on County premises or during the hours the County would be responsible for her. (*Id.* at p. 15:23-25.) Finally, the County argues that it could not have supervised Plaintiff because she was a runaway. (*Id.* at pp. 15:27-16:2.) On the current record, the County has not eliminated duty as a matter of law.

The existence of a duty of care is a question of law. (*M. W. v. Panama Buena Vista Union School Dist.* (2003) 110 Cal.App.4th 508, 516 (*M. W.*).) There is generally no duty to protect against third-party conduct unless a special relationship giving rise to an affirmative duty to protect exists. (*Brown, supra*, 11 Cal.5th at pp. 210-211.) A special relationship between the defendant and victim arises where the victim has a right to expect protection from defendant, while a special relationship between the defendant and third party is one that entails the defendant’s ability to control the third party. (*Id.* at p. 216, citing *Regents of University of California v. Superior Court* (2018) 4 Cal.5th 607, 619 (*Regents*).) Duty is grounded “in relationships involving dependence or control, and who by virtue of those relationships have reason to expect the defendant’s protection.” (*Brown, supra*, 11 Cal.5th at p. 220, citing *Regents, supra* 4 Cal.5th at p. 621.)

The County first contends that causes of action for the negligent supervision of a minor typically arise in the school context, where the minor is harmed on campus and during school hours. The County then attempts to distinguish these authorities as inapplicable outside the school setting. These authorities, however, do not categorically confine the special relationship to school premises or during school hours. *C.A.* observed that the mandatory nature of school attendance and the comprehensive control exercised by school personnel gave rise to the special relationship. (*C.A.*, *supra*, 53 Cal.4th at p. 869.) This observation is illustrative of the dependence or control relationship—as articulated in *Brown*—that gives rise to an affirmative duty of care. (*Brown*, *supra*, 11 Cal.5th at pp. 216, 220.)

Here, it is undisputed that Plaintiff was placed on court-ordered electronic monitoring program. (UMF, 10.) The court also ordered her participation in the TITE program with a case manager tasked with outreach and ensuring Plaintiff’s compliance with treatment plans. (UMF, Nos. 5, 10-11.) And Plaintiff met Garcia through the TITE program. On the current record, viewed favorably to Plaintiff, the relationship between the County and Plaintiff was one of dependence and control over her welfare.

The County next argues that because the alleged assault occurred off its premises and outside the hours of supervision, the County owed Plaintiff no duty. As Plaintiff points out, however, a defendant may still be held liable where the alleged negligence occurred due to the defendant’s failure to supervise the minor. (See *Hoyem v. Manhattan Beach City Sch. Dist.* (1978) 22 Cal.3d 508, 515 [“the off-campus situs of an injury does not ipso facto bar recovery from a school district”].) While the County cites *M. W.* for the proposition that “school grounds provide a different setting” than private homes, *M. W.* does not state that a duty to Plaintiff ceases to exist once she steps off the County’s property. (*M. W.*, *supra*, 110 Cal.App.4th at p. 524.) The *M. W.* court rejected a school district’s argument that it owed no duty to the minor because the district had no actual knowledge of a student’s propensity to commit sexual assault. (*Id.* at pp. 521-522, 524.) The district argued that under *Romero v. Superior Court* (2001) 89 Cal.App.4th 1068 and *Chaney v. Superior Court* (1995) 39 Cal.App.4th 152, actual knowledge should be required. (*Id.* at p. 520.) The *M. W.* court rejected the argument because both cases involved sexual assaults that took place within an adult’s home, and “different public policy concerns related to the responsibilities of school districts that provide mandatory education as compared to adults who invite children into their home on a voluntary basis.” (*M. W.*, *supra*, 110 Cal.App.4th at p. 524.) The court further noted that the district’s affirmative duties arose from “the compulsory nature of school attendance, expectation and reliance of parents and students on schools for safe buildings and grounds, and the importance to society of the learning activity that takes place in schools.” (*Id.* at pp. 524-525, citing *Rodriguez v. Inglewood Unified School Dist.* (1986) 186 Cal.App.3d 707, 714.)

Finally, the County contends that it had no ability to supervise because Plaintiff ran away and evaded arrest. (Motion, p. 16:2-4.) The County offers no authority holding that a court-ordered supervisory relationship dissolves once a minor absconds. (*Public Employment Relations Bd. v. Bellflower Unified School Dist.* (2018) 29 Cal.App.5th 927, 939 [“The absence of cogent legal argument or citation to authority allows this court to treat the contention as waived.”].) Instead, the County acknowledges that it is “unaware of any case authority imposing liability for a failure to supervise a plaintiff while that plaintiff...was a runaway fugitive from all legal supervision.” (*Id.* at p. 16:4-6.) This is insufficient for the County to meet its initial burden. In any event, the general rule that a special relationship gives rise to an

affirmative duty to protect cuts the other way. (*Brown, supra*, 11 Cal.5th at pp. 210-211.) As noted above, the special relationship test looks to whether the defendant is uniquely positioned to protect the plaintiff, and the plaintiff reasonably relies on that protection. (*Id.* at p. 216.) While *Brown* also provides that the special relationship may be limited due to certain policy considerations, the County does not engage in this analysis. (*Id.* at p. 210; see *Rowland v. Christian* (1968) 69 Cal.2d 108.)

Although Plaintiff's whereabouts were unknown to the County, Plaintiff was still required to participate in TITE and Garcia was still assigned as Plaintiff's case manager. The record does not conclusively demonstrate that Plaintiff was no longer in TITE once she ran away. (UMF, Nos. 17, 21, 28 [noting only Plaintiff was on the run].) Even assuming that the special relationship was paused or the County lacked authority to supervise Plaintiff while she was on the run, it is undisputed that Garcia assaulted Plaintiff after she contacted Garcia (i.e., TITE) to assist with her surrender. (Plaintiff's Dep., pp. 90:11-13, 91:5-24, 92:6-16.)

Causation

The County asserts that Plaintiff cannot demonstrate causation because she cannot identify a particular omission in the County's supervision practice that led to her injury. (Motion, p. 16:8-10.) Specifically, the County contends that because Plaintiff was evading supervision, no amount of scrutiny would have protected Plaintiff from Garcia. (*Id.* at pp. 16:27-17:3.) The County relies on *Thompson v. Sacramento City Unified School Dist.* (2003) 107 Cal.App.4th 1352 (*Thompson*) and *Rinehart v. Boys & Girls Club of Chula Vista* (2005) 133 Cal.App.4th 419 (*Rinehart*) for support. *Rinehart*, contrary to the County's portrayal, did not involve a minor evading supervision.

In *Thompson*, two students lured the plaintiff out of view of campus supervisory personnel to rob him of the marijuana they believed he carried. (*Thompson, supra*, 107 Cal.App.4th at p. 1372.) Within two minutes of patrolling the area, the supervisory personnel returned and found the plaintiff already injured. (*Ibid.*) The court determined that the school could not be held liable for the plaintiff's injury because (1) the students deliberately intended to escape scrutiny; and (2) the injury occurred so rapidly that supervisory personnel could not timely discover and respond to the situation. (*Ibid.*) That is not the case here.

Plaintiff ran away from home on June 25, 2005. (UMF, No. 17.) Bidinost knew that Garcia had met with Plaintiff more than once while she was a runaway. (Bidinost Dep., at p. 115:8-117:11.) Concerns were reported to Lloyd about Garcia's transporting program minors. (Lloyd Dep., pp. 77:16-78:12.) Plaintiff eventually contacted Garcia to facilitate the process of her surrender. (UMF, Nos. 21-22.) In August 2005, Bidinost received at least one report that Garcia provided alcohol to Plaintiff. (Bidinost Dep., p. 134:12-25) Plaintiff was then assaulted sometime during the summer or fall of 2005 when she was attempting to surrender. (Plaintiff's Dep., pp. 128:2-5, 145:2-12.)

Once Plaintiff contacted Garcia to assist with her surrender—i.e., prior to her assault—Plaintiff was no longer evading supervision. Plaintiff asked Garcia for help because he was her counselor, and Garcia's job was to keep her on track. (Plaintiff's Dep., at p. 91:10-24.) Plaintiff's theory rests on months of inappropriate one-on-one meetings, unsupervised access, and grooming that led Plaintiff to surrender to Garcia, and in turn, for Garcia to persuade Plaintiff to enter his apartment. (Opposition, p. 16:10-12; Plaintiff Dep., p. 145:2-12 ["I was

ready to open up about, you know, other things to [Garcia], and I think he fed off of it, and he knew I was vulnerable, and he took advantage of it.”.) On this record, Plaintiff’s decision to seek help from her assigned case manager cannot be characterized as an intent to escape County supervision.

To the extent the County also invokes *Thompson*’s substantial link or nexus standard, whether Plaintiff’s theory of causation meets that standard is a fact-intensive question. The facts are in dispute as to when the assault occurred, what County personnel knew about Garcia’s conduct with program minors, and the County’s supervisory relationship with Plaintiff. A trier of fact could reasonably find on the present record that timely County action on the reported conduct could have prevented the attack.

Identification of a County Employee

The County contends that Plaintiff cannot identify a County employee that failed to supervise her. (Motion, p. 17:5-7.) Specifically, the County contends that because it has no duty to supervise minors in their own homes or when they evade supervision no County employee could be held liable for Plaintiff’s assault.

Because a triable issue material fact remains as to whether Garcia is a County employee and that Garcia undisputedly assaulted Plaintiff, Plaintiff has sufficiently identified at least one County employee that is liable for negligently supervision her.

Given the foregoing, the County has not shown that at least one element of the Plaintiff’s fourth cause of action cannot be established. The County’s motion for summary adjudication of the fourth cause of action is denied.

Independent Contractor Liability

The County asserts that summary judgment is appropriate because Plaintiff fails to allege an exception to the general rule of nonliability. The court need not reach this argument because Plaintiff’s vicarious liability theory survives, and the independent contract liability theory, standing alone, does not dispose of either cause of action.

OBJECTIONS TO EVIDENCE

The County objects to Plaintiff’s responses to the County’s undisputed material facts and Plaintiff’s additional material facts. The objections do not fully comply with California Rules of Court, rule. 3.1354. The court declines to issue a ruling on the County’s evidentiary objections because they are not presented in the proper format. (See *Vineyard Spring Estates v. Super. Ct.* (2004) 120 Cal.App.4th 633, 642 [trial courts only have duty to rule on evidentiary objections presented in proper format]; see also *Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 178, fn. 4 [“a separate statement is not evidence.”].)

CONCLUSION

The County’s motion to seal is granted.

The County’s motion for summary judgment is denied. The County’s alternative motion for summary adjudication of the first and fourth causes of action is denied.

The court will prepare the order.

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Calendar Line 4**Case Name: Cairo Sodersten v. General Motors LLC****Case No.: 24CV444963**

This is an action under the Song-Beverly Consumer Warranty Act originally brought by plaintiff Cairo Sodersten (Plaintiff) against General Motors LLC (GM) and various Doe defendants. The lawsuit is based on Plaintiff's purchase of a 2023 Chevrolet Camaro in December 2023. In connection with the purchase, Plaintiff entered into a warranty contract with GM, a direct contractual relationship.

The original complaint was filed in August 2024. A first amended complaint was filed in October 2024, and a second amended complaint was filed in April 2025. GM filed a demurrer and motion to strike directed at the second amended complaint, and that demurrer was heard by the court (Judge Chung) on December 16, 2025. The court sustained the demurrer in part with 20 days' leave to amend and granted the motion to strike with 20 days' leave to amend.

Plaintiff's operative third amended complaint (TAC) was filed on January 12, 2026. As another five days was added to the time to amend because of service of the court's order by mail per Code of Civil Procedure section 1013, subdivision (a), the TAC was timely filed. The TAC states eight causes of action: (1) breach of express warranty; (2) breach of warranty; (3) advertising defective merchandise without disclosing defects; (4) violation of the Consumers Legal Remedies Act; (5) breach of contract; (6) fraud; (7) negligent misrepresentation; and (8) negligent repair (alleged against Doe dealership defendants only). There are no exhibits attached to the TAC.

At issue is a motion for summary judgment directed at the second amended complaint that was filed by GM on March 20, 2026, two months after the operative TAC was filed. There is no trial date in this case.

DISCUSSION

GM's motion for summary judgment or summary adjudication in the alternative is expressly directed at the second amended complaint. (See notice of motion at p. 1:3-6. The motion is therefore denied without prejudice as moot as it is not directed at the operative pleading, the TAC. An amended complaint supersedes all prior complaints and, since there is but one complaint in a civil action, "the filing of an amended complaint moots a motion directed to a prior complaint." (*State Comp. Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1130-1131 [error to grant summary adjudication based on previous complaint].) It is therefore not necessary for the court to consider the parties' other arguments.

As explained above, the TAC was timely filed, and GM's arguments in its reply that it was untimely are not persuasive. Even if the TAC were filed beyond the time given to amend the court could and would exercise its discretion to accept it for filing, given the strong interest in having cases decided on their merits and permitting amendments. (See *Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428 ["[T]he court's discretion will usually be exercised liberally to permit amendment of the pleadings. [Citations.] The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified."].) The court notes that if GM had a sincere belief that the TAC had been filed

beyond the time given for leave to amend the proper course of action would have been to file a motion to strike the TAC as failing to conform to the court's December 2025 order, not file a motion for summary judgment expressly directed at the second amended complaint that failed to make any mention of the TAC filed two months before. The law is not a game of "gotcha" and should not be viewed as such. (See *Barragan v. Super. Ct.* (2007) 148 Cal.App.4th 1478, 1485; *Romer, O'Connor & Co. v. Huffman* (1959) 171 Cal.App.2d 342, 353.) The court will permit GM to file a properly noticed motion for summary judgment/adjudication directed at the operative TAC if it chooses.

CONCLUSION

GM's motion for summary judgment directed at the second amended complaint is denied as moot.

The court will prepare the order.

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Calendar Line 5

Case Name: Fang Xia v. Park Townsend Homeowners Association

Case No.: 25CV460436

This is an action for negligence brought by plaintiff Fang Xia (Xia) against defendant Park Townsend Homeowners Association (the Association).

Xia filed the operative first amended complaint (FAC) in October 2025. It states six causes of action: (1) negligence; (2) premises liability; (3) unsafe conditions; (4) trespass; (5) gross and wanton negligence; and (6) nuisance.

According to the FAC, Xia owns commercial space at 55 Devine Street, San Jose, CA 95110 (the Space). (FAC, ¶ 2.) The Association's condominium complex is located at 46 West Julian Street, San Jose, CA 95110. (*Id.* at ¶ 8.) The complex is comprised of both residential and commercial sections. (*Ibid.*) The Space is part of the commercial section. (*Id.* at ¶ 11.) There are four residential units above the Space. (*Id.* at ¶ 12.)

In May 2021, two of the residential units discovered water leaks in the common walls facing the building common areas. (FAC, ¶ 14.) The cause of the leak was a burst pipe located in the common area on the top floor of the building. (*Ibid.*) Despite knowing that calcium build-up rendered the pipe defective, the Association failed to repair the pipe and address the defect. (*Ibid.*) In May 2024, the same defective pipe burst, causing another major water leak. (*Id.* at ¶ 15.) This leak caused damage to the Space below, including the interior walls, baseboards, custom cabinetry, and Xia's personal property. (*Id.* at ¶ 16.) The Association's property manager promptly notified the building residents but failed to notify Xia of the leak. (*Id.* at ¶ 17.)

The Association partially repaired the water damage in July 2024. (FAC, ¶ 18.) Xia then hired her own contractor to continue the repair work after signing a lease with a new tenant. (*Id.* at ¶¶ 18-19.) In November 2024, Xia requested that the Association compensate her for the repair costs, damaged property, and rental loss. (*Id.* at ¶ 20.) In January 2025, the Association, through counsel, denied Xia's request. (*Ibid.*) In May 2025, another major water leak from the same defective pipe caused damage to the Space. (*Id.* at ¶ 21.)

At issue is the Association's motion for judgment on the pleadings that Xia opposes.

REQUEST FOR JUDICIAL NOTICE

The Association's request for judicial notice of the following exhibits is granted: (1) Grant deed for the real property commonly known as 55 Devine Street, San Jose, California, recorded on June 11, 2008; (2) the Declaration of Covenants, Conditions and Restrictions, and Reservation of Easements of Park Townsend, recorded on June 4, 2004 (2004 CC&Rs); (3) the Declaration of Covenants, Conditions and Restrictions, and Reservation of Easements for Townsend Commercial Condominiums, recorded on January 5, 2006 (2006 CC&Rs); and (4) Reciprocal Easement and Maintenance Agreement between Park Townsend, LLC and Townsend Commercial, LLC, recorded on July 16, 2004 (REMA). These exhibits consist of documents recorded in the Official Records of Santa Clara County and therefore appropriate matters subject to judicial notice under Evidence Code section 452, subdivision (c).

The Association's request for judicial notice of Xia's response to the Association's ex parte application in a prior action (Ex. 5) is denied as irrelevant. (See *Aquila, Inc. v. Super. Ct. (City and County of San Francisco)* (2007) 148 Cal.App.4th 556, 569, ["Although a court may judicially notice a variety of matters [citation], only *relevant* material may be noticed."])

Xia's request for judicial notice of the Gift Grant Deed, recorded on August 17, 2025 is granted. (Evid. Code, § 452, subd. (c).)

LEGAL STANDARDS FOR MOTIONS FOR JUDGMENT ON THE PLEADINGS

A motion for judgment on the pleadings "is equivalent to a belated general demurrer." (*Sprague v. County of San Diego* (2003) 106 Cal.App.4th 119, 127.) It has the same function as a general demurrer, but it is made after the time for demurrer has expired. Except as provided by statute (Code Civ. Proc., § 438), the rules governing demurrers apply. As with a demurrer, in ruling on a motion for judgment on the pleadings the court accepts as true all properly pled material factual allegations, but does not accept as true contentions, deductions, or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253.)

DISCUSSION

The Association's Challenges to the Entire FAC Fail.

The Association contends that because all causes of action are pleaded on the theory of negligence, the failure to allege duty is fatal to each claim. (Motion, p. 4:2-4.) The Association thus challenges the entire FAC on the grounds that (1) Xia lacks standing because she has no enforcement rights under the Association's governing documents; and (2) the FAC fails to allege any legal duty independent of those documents. (Notice, p. 2-13:20.)

The elements of a negligence cause of action are: (1) the legal duty to use due care; (2) breach of said duty; and (c) the breach was the proximate or legal cause of the injury. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917-918.)

The FAC alleges that the Association is responsible for the management and maintenance of the entire building at 46 West Julian Street, including the Space. (FAC, ¶ 9.) The 2004 CC&Rs and REMA give rise to this duty. (*Ibid.*) Each cause of action repeats or incorporates these allegations of duty arising from the Association's governing documents. (*Id.* at ¶¶ 22-24, 27-29, 33, 38, 45-46, 51.) While Plaintiff claims Civil Code section 1714, subdivision (a) as a statutory basis for duty, that is not alleged in the FAC. The second cause of action for premises liability, however, also alleges the Association's common law duty as a landowner. (*Id.* at ¶ 31, citing *Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1159.) Thus, the second cause of action cannot be read as Xia's attempt to enforce the governing documents or that a duty arose from those documents.

As with a demurrer challenging an entire pleading, a motion for judgment on the pleading directed to an entire pleading fails if any cause of action is properly stated. (See *Warren v. Atchison, Topeka & Santa Fe Ry.* (1971) 19 Cal.App.3d 24, 29, 36 [trial court's sustention of demurrer to entire pleading reversed on ground that a cause of action was

stated]; see also *Shook v. Pearson* (1950) 99 Cal.App.2d 348 [a demurrer which attacks entire pleading should be overruled if one of the counts therein is not vulnerable to the objection.].)

Given that the second cause of action does not seek enforcement of the Association's governing documents and alleges duty independent of the governing documents, the Association's motion for judgment on the pleadings directed to the entire FAC is denied.

Xia May Plead Duplicative Causes of Action.

The Association next argues that the causes of action for premises liability, unsafe conditions, and gross and wanton negligence are subject to dismissal because they are duplicative of the first cause of action for negligence.

While some courts have recognized duplicative causes of action as a basis for demurrer or a motion for judgment on the pleadings (e.g., *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290) the Sixth District Court of Appeal found that duplicative pleading "is the sort of defect that, if it justifies any judicial intervention at all, is ordinarily dealt with most economically at trial, or on a dispositive motion such as summary judgment." (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858.) This court follows the Sixth District's guidance and declines to grant the motion for judgment on the pleadings on this basis. (See *McCallum v. McCallum* (1987) 190 Cal.App.3d 308, 315 [as a practical matter, a superior court ordinarily will follow an appellate opinion emanating from its own district].)

Xia Fails to Allege the Association's Duty for the Trespass and Nuisance Causes of Action.

The Association asserts that because the trespass and nuisance causes of action are based on negligence rather than intentional or reckless conduct, the failure to allege any duty owed by the Association is fatal to both claims. (Motion, pp. 9:24-28, 10:1-3.)

The elements of trespass are: (1) plaintiff's ownership or control of the property; (2) defendant's intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) defendant's conduct was a substantial factor in causing the harm. (*Ralphs Grocery Co. v. Victory Consultants, Inc.* (2017) 17 Cal.App.5th 245, 262, citing CACI No. 2000.) A trespass may be found where a defendant places something or causes migration of pollutants on a plaintiff's land. (*Martin Marietta Corp. v. Insurance Co. of North America* (1995) 40 Cal.App.4th 1113, 1132.) Thus, a trespass cause of action may be based on allegations of water intrusion. (See *Motzer v. Paoli* (1952) 110 Cal.App.2d 141, 144.)

The elements of private nuisance are: (1) an interference with the use and enjoyment of property; (2) causing substantial actual damage; (3) and is of such a nature, duration, or amount as to constitute unreasonable interference with the use and enjoyment of the land. (*Mendez v. Rancho Valencia Resort Partners, LLC* (2016) 3 Cal.App.5th 248, 262-263.) "A nuisance may be either a negligent or an intentional tort." (*Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 920, superseded by statute on other grounds.)

The FAC alleges trespass based on the water damage caused by a defective pipe in the Association’s residential properties above Xia’s Space in May 2021. (FAC, ¶ 14.) The Association allegedly knew of the defective pipe but failed to repair the pipe, leading to major water leaks in May 2024 and 2025. (*Id.* at ¶¶ 14-15, 21, 40.) The May 2024 leak caused damage to the Space. (*Id.* at ¶ 16.) And the Association is allegedly responsible for the maintenance of the entire building—including the Space—under the governing documents of the Association. (*Id.* at ¶ 9.) Xia’s nuisance cause of action repeats and realleges the preceding allegation to state that the Association obstructed Xia’s free use of the Space. (*Id.* at ¶¶ 51-52.)

The arguments presented require an interpretation of the governing documents. “ ‘Courts must interpret contractual language in a manner which gives force and effect to every provision, and not in a way which renders some clauses nugatory, inoperative or meaningless.’ ” (*Hemphill v. Wright Family LLC* (2015) 234 Cal.App.4th 911, 915, quoting *City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445, 473.)

The Association argues that Xia cannot allege duty because the REMA absolves it of any liability. The Space’s grant deed states that the property is conveyed subject to the 2006 CC&Rs and REMA. (RJN, Ex. 1 [Grant Deed], p. 1.) The REMA states that the Association “shall have no responsibility or liability for the maintenance and repair of the Commercial Space, or any appurtenances, including doors, door locks, windows and window screens or any related facilities. (RJN, Ex. 4 [REMA], p. 11, art. 4.1(g).)

In opposition, Xia asserts that under the 2004 CC&Rs, 2006 CC&Rs, and REMA, the Association owes her a duty. The 2004 CC&Rs provides that the Association has the duty, obligation, and responsibility to “[m]aintain, repair, restore, rebuild and replace, and make necessary Improvements” to areas such as the “Building.” (RJN, Ex. 2 [2004 CC&Rs], p. 56, art. 10.1(a).(1).) “Building” is defined to include the Space. (*Id.* at pp. 3-4, arts. 1.8, 1.13; see Grant Deed, p. 3.) The 2004 CC&Rs further provides the Association’s responsibility to maintain the “[c]ommon domestic water distribution system and related facilities serving the Units and the Common Area.” (2004 CC&Rs, p. 57, art. 10.1(a).(4).) But this provision does not include the Space. “Units” are defined as the residential spaces, and “Common Area” refers to the “Project”, which does not include the Space. (*Id.* at pp., 4, 7-8, arts. 1.14, 1.39, 1.42.)

The 2006 CC&Rs provides that “the operation, maintenance, repair, replacement and restoration of the Building are the primary responsibility of the [Association].” (*Id.* at Ex. 3 [2006 CC&Rs], p. 16, art. 5.1.) The 2006 CC&Rs defines “Building” to include the Space. (*Id.* at p. 3, arts. 1.7, 1.10.) The REMA provides, “Except as provided elsewhere in this [REMA], the Homeowners Association shall maintain the Building in good clean, safe and functional condition[.]” (REMA, p. 11, art. 4.1) The REMA similarly defines “Building” to include the Space. (*Id.* at p. 2, art. 1.3.)

Both the 2004 CC&Rs and 2006 CC&Rs refer to the REMA in discussing the repair and maintenance obligations of the Association. (2004 CC&Rs, p. 56, art 10.1 [including “areas designated in the [REMA]”]; 2006 CC&Rs, p. 16, art 5.1. [providing maintenance obligations “[a]ccording to the terms of the [REMA]”].) Both also state that where a conflict exists between CC&Rs and REMA, the REMA provisions supersede and control. (2004 CC&Rs, p. 90, art. 20.16; 2006 CC&Rs, p. 16, art. 5.4.) As noted above, the REMA expressly

states that the Association has “no responsibility or liability for the maintenance and repair of the Commercial Space[.]” (REMA, p. 11, art. 4.1(g).) Thus, from the plain language of the governing documents, the Association owed no duty of maintenance or repair to Xia.

Xia argues that the REMA liability clause is limited to “routine maintenance duties between the HOA and the owner.” (Opposition, p. 7:2-4.) At the pleading stage, a plaintiff’s reasonable interpretation of an ambiguous contract is accepted as true. (*Rutherford Holdings, LLC v. Plaza Del Ray* (2014) 223 Cal.App.4th 221, 229-230.) Here, Xia’s interpretation, without more, cannot be considered as reasonable. Xia does not provide citations to legal authority or the REMA provision supporting her interpretation of that provision. (See *United Grand Corp. v. Malibu Hillbillies, LLC* (2019) 36 Cal.App.5th 142, 153 [court may disregard conclusory arguments that are not supported by pertinent legal authority or fail to disclose the reasoning by which the appellant reached the conclusions he or she wants us to adopt].) Accordingly, the FAC fails to allege the Association’s duty for purposes of the trespass and nuisance causes of action.

While Xia asserts the trespass cause of action is based on the Association’s intentional entry onto her property, the FAC does not allege this theory or any facts in support. The Association’s motion for judgment on the pleadings as to the fourth and sixth causes of action is granted.

A plaintiff bears the burden of demonstrating that an amendment would cure the defect identified on demurrer. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081; *Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145 [“The onus is on the plaintiff to articulate the ‘specifi[c] ways’ to cure the identified defect, and absent such an articulation, a trial or appellate court may grant leave to amend ‘only if a potentially effective amendment [is] both apparent and consistent with the plaintiff’s theory of the case.’ ”].) Xia’s opposition does not meet this burden. The court will nonetheless grant leave to amend because this is the first pleading challenge to be heard in this action.

CONCLUSION

The Association’s motion for judgment on the pleadings as to the entire FAC on the ground of a failure to state sufficient facts is denied.

The Association’s motion for judgment on the pleadings as to the second, third, and fifth causes of action on the ground that each is duplicative of the first cause of action for negligence is denied.

The Association’s motion for judgment on the pleadings as to the fourth and sixth causes of action on the ground of a failure to state sufficient facts is granted with leave to amend. The court does not grant leave to add any new parties or causes of action. (*Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 456.)

Any amended pleading must be filed and served no later than October 19, 2026.

The court will prepare the order.

Calendar Line 6

Case Name: Carmen Moyoli v. Jorge Villar et al

Case No.: 25CV462725

This is an action brought by Plaintiff Carmen Moyoli against Defendants Jorge Villar (Plaintiff's brother) and Constanza Villar alleging theft of items from a safe and clothes. At issue for today's hearing is Defendants' demurrer.

Defendants' demurrer to Plaintiff's complaint was filed on July 7, 2026 and accompanied by a declaration, memorandum of points and authorities, and proof of service by mail. Notice is proper and no timely opposition was filed.

Defendants' demurrer contends the complaint does not state facts sufficient to constitute a cause of action and is uncertain. (Code Civ. Proc., § 430.10, subds. (e)(f).) The complaint consists of a one-page statement of single-spaced text and a police report that fails to state a recognized cause of action, pleads no facts establishing the elements of any claims against either defendant, does not identify what claim is asserted as to each defendant such that Defendants cannot reasonably determine what are required to admit or deny.

Upon review of the moving papers, the court concludes that Defendants have met their burden and good cause appearing, the demurrer is SUSTAINED.

Because this is the first pleading challenge in this case to be heard by the court, the court will grant leave to amend. The court does not grant leave to add new causes of action or new parties. (*Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 456.) Any amended pleading must be filed and served no later than October 2, 2026.

The court will prepare the order.

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Calendar Line 7

Case Name: Asirepro.com v. Esther Cunningham

Case No.: 25CV464509

Andrea Sykes moves for leave of the court to intervene and file a complaint in intervention in this action. Said motion was filed on March 27, 2026, and served on both Plaintiff and Defendant. Defendant's opposition was filed on September 3, 2026. Plaintiff filed a notice of non-opposition on September 9, 2026.

A third-party seeking intervention may demonstrate either a "right" to intervene or a basis for "permissive" intervention. (Code Civ. Proc., § 387, subd. (d).) The former applies if the "person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties." (Code Civ. Proc., § 387, subd. (d)(1)(B).) The latter applies "if the person has an interest in the subject matter in litigation, or in the success of either of the parties, or an interest against both." (Code Civ. Proc., § 387, subd. (d)(2).) Under subdivision (d)(2), the court has the discretion to permit intervention if: "(1) the intervener has a direct and immediate interest in the litigation, (2) the intervention will not enlarge the issues in the case, and (3) the reasons for intervention outweigh opposition by the existing parties." (*Hinton v. Beck* (2009) 176 Cal.App.4th 1378, 1382-1383.)

The third-party/intervenor's application in this matter was timely and accompanied by a Complaint in Intervention and Declaratory Relief. The necessary showing has been made by the third-party/intervenor that proper procedures have been followed, the third-party/intervenor has a direct and immediate interest in the action, the intervention will not enlarge the issues in the litigation, and the reasons for the intervention outweigh any opposition by the parties presently in this action.

The request for leave of the court to intervene is GRANTED.

Counsel for the third-party/intervenor Andrea Sykes is ordered to prepare and submit the proposed order.

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Calendar Line 8

Case Name: Capital One, N.A. v. Destiny Ramos

Case No.: 25CV466869

Before the court is Plaintiff's motion to deem admitted requests for admission, set one (Code Civ. Proc., § 2033.280). The motion was filed on February 27, 2026. The declaration filed with the motion and dated February 24, 2026 indicates the request was made on August 21, 2025, and no response to the request has been received. No opposition was filed by the Defendant.

The court finds that notice is proper (proof of service was filed on February 27, 2026) and the motion is unopposed. On good cause shown, the motion is GRANTED and the requests for admission are deemed admitted.

Plaintiff (Moving Party) is ordered to prepare and submit a proposed order.

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Calendar Line 9

Case Name: Cavalry SPV I, LLC as assignee of Citibank, N.A. v. Remy-Ann Perez

Case No.: 25CV470054

Plaintiff Cavalry SPV I, LLC (Plaintiff) is the assignee of Citibank, N.A. (Complaint at p. 1:23.) This action concerns a debt incurred from a credit agreement between Citibank, N.A. and Defendant Remy A. Perez (Defendant). (Complaint at ¶ 9.) Plaintiff alleges the last date of payment on the account was November 9, 2023. (*Id.* at ¶ 16.) “Defendant breached the written credit agreement by failing to make those minimum payments which became due and owing thereafter.” (*Ibid.*) The total balance due at charge off was \$3,700.31. (Complaint at ¶ 17.) Plaintiff filed suit for breach of contract on July 8, 2025.

Defendant now moves to compel arbitration of Plaintiff’s claim pursuant to the arbitration provision contained in the Card Agreement Guide (the Agreement). Having considered the arbitration provision, the court will grant this motion and stay the action.

LEGAL STANDARD

The Federal Arbitration Act (FAA) governs the arbitration provision. The Agreement provides, “[t]his arbitration provision is governed by the Federal Arbitration Act (FAA), and shall be interpreted in the broadest way the law will allow.” (Complaint, Ex. A: Card Agreement Guide at § 11 at p. 8.) Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

ANALYSIS/DISCUSSION

There is a Valid Agreement to Arbitrate

“The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.’ ” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted.) Although the Agreement is not attached to the motion, it is attached to Plaintiff’s complaint and contains the operative arbitration provision. (Complaint, Ex. A: Card Agreement Guide § 11.) In her original motion, however, Defendant recites the terms of the arbitration provision verbatim. (07/29/25 Motion to Compel Arbitration at ¶ 1.) Defendant re-filed her motion to obtain a new hearing date. In the re-filed motion, Defendant references the arbitration provision contained in the underlying Agreement that is attached to the complaint. (03/17/26 Motion to Compel Arbitration at p. 1:20-25.) The court finds the original recitation of the terms and subsequent reference to the Agreement sufficient for carrying the burden of proving the existence of an agreement to arbitrate between the parties. (*Hotels Nevada v. L.A. Pacific Center, Inc.* (2006) 144 Cal.App.4th 754, 765 [“Appellant carried its burden of proving the existence of an arbitration agreement between the parties by quoting the pertinent portions of the arbitration clause in its motion to compel

arbitration and referencing the arbitration clause in the Agreement attached to Hotel Nevada's complaint as exhibit A."].) In any event, Plaintiff does not challenge the authenticity of the Agreement.

The Scope of the Agreement Covers Plaintiff's Claims

The Agreement provides, "[e]xcept as stated below, all Claims are subject to arbitration, no matter what legal theory they're based on or what remedy (damages, or injunctive or declaratory relief, they seek, including Claims based on contract, tort (including intentional tort), fraud, agency, your or our negligence, statutory, or regulatory provisions, or any other sources of law[.]" (Complaint, Ex. A: Card Agreement Guide § 11 at p. 9.) Plaintiff brings a single cause of action for breach of contract, which is covered by the scope of the Agreement.

Plaintiff may be subjected to arbitration because it brings this claim on behalf of Citibank, N.A. as its assignee. The Agreement states that Claims include those "made by or against anyone connected with us or you, such as a co-applicant, authorized user, employee, agent, representative, or an affiliated parent/subsidiary company." (Complaint, Ex. A: Card Agreement Guide § 11 at p. 9.)

This action is otherwise characterized as the collection of a debt. The agreement makes clear that "we [Plaintiff] won't initiate arbitration to collect a debt from you unless you choose to arbitrate or assert a Claim against us. If you assert a Claim against us, we can choose to arbitrate, including actions to collect a debt from you. You may arbitrate on an individual basis Claims brought against you, including Claims to collect a debt." (Complaint, Ex. A: Card Agreement Guide § 11 at p. 9.) Thus, while the scope of the Agreement covers the instant claim for breach of contract or collection of a debt, Defendant must be the one to initiate arbitration.

Furthermore, the Agreement provides, "[w]e will pay your share of the arbitration fee for an arbitration of Claims of \$75,000 or less if they are unrelated to debt collection. Otherwise, arbitration fees will be allocated according to the applicable AAA Rules." (Complaint, Ex. A: Card Agreement Guide § 11 at p. 9.) Since this action concerns a debt collection, Defendant must consult the AAA Rules for the applicable fee schedule. Nevertheless, the scope of the Agreement covers Plaintiff's claims, even though Defendant must be the one to initiate arbitration and pay the applicable fees due under the AAA Rules.

Defendant Has Not Waived Her Right to Arbitration

Plaintiff argues Defendant has waived her right to arbitration. (Opposition at pp. 2:17-4:2.) Plaintiff acquired Defendant's account in July 2024 and began sending correspondence advising of the outstanding balance in August 2024. (*Id.* at p. 2:3-4.) The account was placed with legal counsel for collection in March 2025. (*Id.* at p. 2:6-7.) On May 28, 2025, Plaintiff's counsel notified Defendant that legal action was imminent if the matter was not resolved. (*Id.* at p. 2:9-10.) Plaintiff argues Defendant was aware of this dispute since August 2024 and waited a year to make her demand for arbitration. (*Id.* at pp. 3:25-4:1.)

The California Supreme Court has identified various factors that are “relevant and properly considered in assessing waiver claims.” (*St. Agnes Medical Center v. Pacific Care of California* (2003) 31 Cal.4th 1187, 1195-1196.) Those factors are:

(1) whether the party’s actions are inconsistent with the right to arbitrate; (2) whether ‘the litigation machinery has been substantially invoked’ and the parties ‘were well into preparation of a lawsuit’ before the party notified the opposing party of an intent to arbitrate; (3) whether a party either requested arbitration enforcement close to the trial date or delayed for a long period before seeking a stay; (4) whether a defendant seeking arbitration filed a counterclaim without asking for a stay of the proceedings; (5) whether important intervening steps [e.g. taking advantage of judicial discovery procedures not available in arbitration] had taken place; and (6) whether the delay affected, misled, or prejudiced the opposing party.

(*Sobremonte v. Superior Court* (1998) 61 Cal.App.4th 980, 992 [internal citations and quotations omitted; *St. Agnes, supra*, 31 Cal.4th at p. 1196.]) The prejudice requirement under the sixth factor has been abrogated by the California Supreme Court. (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562 (*Quach*).) The sixth factor regarding prejudice was based on federal cases that “applied an arbitration-specific rule that required a showing of prejudice to establish waiver.” (*Quach, supra*, 16 Cal.5th at p. 569.) “To establish waiver, there is no requirement that the party opposing enforcement of the contractual right demonstrate prejudice or otherwise show harm from the waiving party’s conduct.” (*Id.* at p. 585.)

The multifactor test is not “a mechanical process in which each factor is assessed and the side with the greater number of favorable factors prevails,” nor is the list of factors exclusive: rather, the factors reflect the principles that should guide courts in determining whether a party has waived its right to demand arbitration. (*Zamora v. Lehman* (2010) 186 Cal.App.4th 1, 15 [internal quotation marks and citation omitted].) “The waiver inquiry is exclusively focused on the waiving party’s conduct; neither the effect of that conduct on the party seeking to avoid enforcement nor that party’s subjective evaluation of the waiving party’s intent is relevant.” (*Quach, supra*, 16 Cal.5th at p. 585.)

Waiver has been found not only when there is a delay in seeking to arbitrate, but also when there is the presence of other factors. (*Guess?, Inc. v. Superior Court* (2000) 79 Cal.App.4th 553, 557-558 [noting that the defendant did not plead its right to arbitrate as an affirmative defense, and that the defendant fully participated in the discovery process including depositions]; *Kaneko Ford Design v. Citypark, Inc.* (1988) 202 Cal.App.3d 1220, 1228 [noting that the appellant participated in settlement negotiations without notifying the respondent of its intent to seek arbitration]; *Adolph v. Coastal Auto Sales, Inc.* (2010) 184 Cal.App.4th 1443, 1452 [noting that the defendant filed its petition to compel arbitration only slightly more than three months before trial and two months before the discovery cut off]; *Augusta v. Keehn & Associates* (2011) 193 Cal.App.4th 331, 338-339 [noting that the defendant participated in discovery, filed a motion for sanctions, and demurred].)

Although Defendant had notice of this matter since August 2024, this lawsuit was not filed until July 8, 2025. The arbitration provision states “[t]o choose arbitration, a party may file a motion to compel arbitration in a pending matter and/or commence arbitration by

submitting the required AAA forms and requisite filing fees to the AAA.” (Complaint, Ex. A: Card Agreement Guide § 11, p. 9.) By filing this motion, Defendant has followed the proper procedure for commencing arbitration pursuant to the Agreement. Defendant filed an answer on July 29, 2025, and raised arbitration as an affirmative defense. (Answer at ¶ 2.) Defendant also filed her original motion to compel arbitration on July 29, 2025, or less than a month after the commencement of this action. Defendant re-filed this motion on March 17, 2026, or eight months after this lawsuit was filed. Despite this delay, Defendant confirms that she has not engaged in any litigation conduct involving this matter. (Reply at pp. 1:27-2:1.) Trial is still several months away, scheduled for April 2027. Defendant has not made this request on the eve of trial. For these reasons, the court does not find Defendant has waived her right to arbitrate.

Accordingly, the motion to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. § 3.) Consistent with Plaintiff’s request, Defendant must initiate arbitration within 90 days else the matter will be restored to the civil calendar.

CONCLUSION

The motion to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration.

The court will prepare the order.

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Calendar Line 10

Case Name: Saniyah Winslett v. Patricia St. Claire Rodriguez

Case No.: 25CV474170

This is an action for property damage and personal injury brought by Plaintiff Saniyah Winslett, a minor, by and through her guardian ad litem, Shawnte Chanel McDonald, against Defendant Patricia St. Claire Rodriguez. Plaintiff filed the complaint on September 2, 2025.

At issue is the Plaintiff's motion for a protective order related to the deposition of the Plaintiff that Defendant opposes. (Code Civ. Proc. § 2025.420(b).) Generally, Plaintiff seeks a protective order precluding Defendant from deposing her on the grounds that she is 10 years old and not cognitively mature enough for a deposition. More specifically as an alternative form of relief, Plaintiff asks that the deposition be limited to written interrogatories instead of an oral deposition, or limitations and the scope of the procedure for the deposition if it is not quashed. The Defendant opposes the motion and proposes narrowly tailored conditions if the court finds that a protective order is warranted – limitation on the deposition to a “short, remote, age-appropriate examination with regular breaks, the guardian ad litem present, and limits against repetitive and oppressive questioning.”

The court has the authority to set limits on the deposition of a 10-year-old plaintiff or to preclude the deposition from going forward altogether. (Code Civ. Proc. § 2025.420.) The statute explicitly provides that upon a motion for a protective order and a showing of "good cause," a court may make "any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense" (Code Civ. Proc. § 2025.420.) The court's authority is broad and highly discretionary, and its rulings on protective orders are reviewed under an abuse of discretion standard. (*Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal. App. 4th 261.)

The court has considered the filings of the parties and the content of the declarations provided with the filings. The court has further considered the competing interests of the parties and their needs in seeking resolution of this case, specific harms that may come to the Plaintiff by participating in the oral deposition, the availability of less intrusive means available that would promote liberal discovery of important and relevant information, and the general relevance and necessity of oral testimony against the burden, intrusiveness, potential oppression or distress it may cause the Plaintiff.

Plaintiff's request to preclude an oral deposition is DENIED. The alternative request for a protective order limiting the scope and procedure of the deposition is GRANTED.

The Court issued the following protective orders as to the deposition of the minor Plaintiff: (1) The deposition will proceed remotely unless the parties agree otherwise; (2) Questioning of Plaintiff will be limited to 60 minutes (1 hour) of on-the-record testimony excluding breaks; (3) Plaintiff may take a break every 20 minutes and additional breaks upon request; (4) No question may be pending at the commencement of any break; (5) Plaintiff's guardian ad litem may be present but shall not supply answers or prompt, sway, or influence the Plaintiff in any way; (6) Counsel are to use age-appropriate, non-compound questions and will not harass or repeat a question after Plaintiff has states she does not remember; (7) Inquiry will be limited to the collision, Plaintiff's activities and observations surrounding the collision,

her subsequent treatment, symptoms, and limitations; (8) Counsel will suspend the deposition and meet and confer if Plaintiff becomes unable to continue. Any dispute that arises during the deposition that cannot be resolved by counsel after meeting and conferring shall be presented to the court for further direction.

Counsel for Defendant is ordered to prepare and submit a proposed order.

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